



CHAPTER xxx.

An Act for conferring further powers upon the Great Western Railway Company in respect of their own undertaking and upon that company and the London Midland and Scottish Railway Company in respect of an undertaking in which they are jointly interested and upon the Great Western and Great Central Railways Joint Committee and for other purposes.

A.D. '937.

[10th June 1937.]

WHEREAS it is expedient that the Great Western Railway Company (in this Act referred to as "the Company") should be empowered as by this Act provided to construct the railways and the other works and to exercise the powers by this Act authorised and to acquire for the purposes of this Act and for the general purposes of their undertaking and works connected therewith the lands in this Act described or referred to :

And whereas it is expedient that the Company and the London Midland and Scottish Railway Company (in this Act called "the London Company") and the Great Western and Great Central Railways Joint Committee (in this Act called "the Joint Committee") should be empowered to acquire lands in this Act described or referred to in that behalf and that the

A.D. 1937. — acquisition of other lands already acquired by the Joint Committee should be sanctioned and confirmed :

And whereas plans and sections showing the lines and levels of the railways and other works by this Act authorised and plans showing the lands by this Act authorised to be acquired compulsorily and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerks to the county councils of the several administrative counties and town clerk to the county borough respectively within which such railways and other works will be constructed and such lands are situated and are hereinafter respectively referred to as the deposited plans sections and books of reference :

And whereas it is expedient that the Company should be authorised to abandon and discontinue the construction or the maintenance and use of certain railways in this Act mentioned :

And whereas it is expedient that the Company the London Company and the Joint Committee should be authorised to apply their respective funds for the purposes of this Act :

And whereas it is expedient that some of the provisions of the existing Acts of the Company the London Company and the Joint Committee should be amended or repealed and that the other powers in this Act mentioned should be conferred :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

Short title.

1. This Act may be cited for all purposes as the Great Western Railway Act 1937.

Incorporation of
general
Acts.

2. The following Acts and parts of Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are

in the rural district of Eton in the county of Buckingham at a point 29 chains west of Denham station on the Joint Committee's Northolt and Wycombe railway and terminating in the urban district of Uxbridge in the county of Middlesex by a junction with Railway No. 1 authorised by the Great Western Railway (Ealing and Shepherd's Bush Railway Extension) Act 1936 at the commencement of that railway; A.D. 1937. —

26 Geo. 5. &
1 Edw. 8.
c. lxxv.

A railway (No. 2) 7 miles 3 furlongs and 7 chains in length wholly in the county of Devon commencing in the urban district of Dawlish by a junction with Railway No. 1 authorised by the Great Western Railway (Additional Powers) Act 1936 in the enclosure numbered on the plans deposited in connection with that Act 17 in the said urban district and terminating in the parish of Exminster in the rural district of Saint Thomas by a junction with the Company's South Devon railway at a point 5 chains south of the bridge carrying Milbury Lane over that railway; 26 Geo. 5. &
1 Edw. 8.
c. ci.

A railway (No. 3) 6 furlongs and 7 chains in length wholly in the rural district of Penybont in the county of Glamorgan commencing in the parish of Kenfig by a junction with the Company's South Wales railway at a point 42 chains west of Pyle station and terminating in the parish of Pyle by a junction with the Company's Porthcawl branch railway at a point 1 chain north-east of the crossing on the level by that railway of the road known as Heol Y Sheet leading from North Cornelly to Bridgend.

6. For the purposes of tolls fares rates and charges and for all other purposes the railways shall form part of the undertaking of the Company. Rates and charges.

7.—(1) The Company may abandon the construction of so much of Railway No. 1 authorised by the Great Western Railway (Additional Powers) Act 1936 as lies between the commencement of Railway No. 2 Abandonment of portion of authorised railway.

A.D. 1937. — by this Act authorised and the termination of the first mentioned railway.

(2) The abandonment by the Company under the authority of this Act of the said portion of railway shall not prejudice or affect the right of the owner or occupier of any land to receive compensation for any damage occasioned by the entry of the Company on such land for the purpose of surveying and taking levels or probing or boring to ascertain the nature of the soil or setting out of the line of railway and shall not prejudice or affect the right of the owner or occupier of any land which may have been temporarily occupied by the Company for the purposes of the said portion of railway to receive compensation for such temporary occupation or for any loss damage or injury which has been sustained by such owner or occupier by reason thereof or of the exercise as regards such land of any of the powers contained in the Railways Clauses Consolidation Act 1845 or the Act authorising the construction of the said portion of railway.

(3) Where before the passing of this Act any contract has been entered into or notice been given by the Company for the purchase of any land for the purposes of or in relation to the said portion of railway referred to in the last preceding subsection of this section the Company shall be released from all liability to purchase or to complete the purchase of any such land but notwithstanding full compensation shall be made by the Company to the owners and occupiers or other persons interested in such land for all injury or damage sustained by them respectively by reason of the purchase not being completed pursuant to the contract or notice and the amount and application of the compensation shall be determined in manner provided by the Lands Clauses Acts for determining the amount and application of compensation to be paid for lands taken under the provisions thereof.

Power to
deviate.

8. In making the railways and works in connection therewith by this Act authorised the Company may deviate laterally to any extent not exceeding the limits of deviation shown on the deposited plans and vertically from the levels shown on the deposited sections to any

extent not exceeding ten feet upwards and ten feet downwards or to such further extent as they may find necessary or convenient and as may be sanctioned by the Minister of Transport.

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9. In altering for the purposes of this Act the roads next hereinafter mentioned the Company may make the same of any inclinations not steeper than the inclinations hereinafter mentioned in connection therewith (that is to say) :—

Inclination of roads.

No. on deposited plans.	Area.	Description of road.	Intended inclination.
RAILWAY No. 3.			
10 } 13 }	Parish of Pyle -	Public	1 in 25 on the south-western side.

10. The Company may make the arches of the bridges for carrying the railways over the roads next hereinafter mentioned of any heights and spans not less than the heights and spans hereinafter mentioned in connection therewith (that is to say) :—

Height and span of bridges.

No. on deposited plans.	Area.	Description of road.	Span.	Height.
RAILWAY No. 2.				
103	Urban district of Dawlish.	Public	20 feet	16 feet.
37	Parish of Kenton.	Public	20 feet	16 feet.
50	Parish of Kenton.	Public	20 feet	15 feet.

11. The Company may make the roadway over the bridges by which the following roads will be carried over the railways hereinafter mentioned of such width between the fences thereof as the Company think fit

Width of certain roadways.

A.D. 1937. not being less than the respective widths hereinafter mentioned in connection therewith (that is to say) :—

No. on deposited plans.	Area.	Description of roadway.	Width of roadway.
RAILWAY No. 1.			
21	Urban district of Uxbridge	Public	20 feet.
RAILWAY No. 2.			
45	Parish of Kenton - -	Public	16 feet.
22	Parish of Exminster - -	Public	15 feet.

Power to divert roads and footpaths as shown on deposited plans.

12. The Company may divert the roads and the footpaths referred to in the next following table in the manner shown upon the deposited plans and sections or as otherwise provided by this Act and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each existing road or footpath as will be rendered unnecessary by the new portion of roads or footpaths so shown on the said plans (that is to say) :—

Railway or other work.	Area.	Number of road or footpath on deposited plans.
Railway No. 1 -	Parish of Denham - -	{ 14
	Urban district of Uxbridge -	{ 15
Railway No. 2 -	Urban district of Dawlish -	{ 36
	Urban district of Dawlish -	{ 37
	Parish of Exminster - -	39
	Parish of Kenfig - -	77
Railway No. 3 -	Parish of Pyle - -	22
	Parish of Pyle - -	4
	Parish of Pyle - -	4
		{ 10
		{ 13

Company not liable to repair surface of road

13. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried

over the railways by a bridge or bridges or the immediate approaches thereto except so far as the level of such road or highway or approaches is permanently altered so as to increase the gradient thereof: A.D. 1937.

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level of
which is
not per-
manently
altered.

Provided that nothing in this section shall relieve the Company from any liability which they were under immediately prior to the passing of this Act for the maintenance of the surface of any such road highway or approach.

14. The following provisions for the protection of the county council of the administrative county of Middlesex (in this section called "the county council") shall unless otherwise agreed in writing between the Company and the county council have effect (namely):— For pro-
tection of
Middlesex
County
Council.

(1) In this section the expression "the sewer" means the sewer of the county council which is situate in the enclosures numbered respectively 1 46 and 47 in the urban district of Uxbridge on the deposited plans and which is the subject of an agreement dated the seven-teenth day of February nineteen hundred and thirty-three and made between the ~~Joint Com-~~mittee of the first part ~~the~~ Company and the London and North Eastern Railway Company of the second part and the county council of ~~the~~ third part:

(2) The Company shall not commence any part of Railway No. 1 by this Act authorised (in this section called "the said railway" which expression in this section includes any works and conveniences connected therewith) which will or may pass over under or by the side of or so as to interfere with the sewer until they shall have given to the county council twenty-eight days' previous notice in writing of their intention to commence the same by leaving such notice at the office of the county council with plans and sections thereof as hereinafter defined and until the county council shall have signified their approval of the same (unless the county council do not signify their approval disapproval or other directions within twenty-eight days after service of the said plans and sections.

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as aforesaid) and the Company shall comply with and conform to all reasonable orders directions and regulations of the county council in the construction of so much of the said railway as will or may affect the sewer and shall provide new altered or substituted works in such manner as the county council shall reasonably require for the proper protection of and for preventing injury or impediment to such sewer by reason of the said railway or any part thereof and shall save harmless the county council against all expenses to be occasioned thereby and all such works so far as they affect the sewer shall be done by or under the direction superintendence and control of the engineer or other officer of the county council (if given) at the costs charges and expenses in all respects of the Company and all costs charges and expenses in relation to the sewer which the county council may be put to by reason of the said railway whether in the execution of works the preparation or examination of plans or designs superintendence or otherwise shall be paid to the county council by the Company on demand and when any such new altered or substituted works as aforesaid or any works of protection connected therewith shall be completed by or at the costs charges or expenses of the Company under the provisions of this section the same shall thereafter be as fully and completely under the direction jurisdiction and control of the county council as any sewers or works now or hereafter may be and nothing in this Act shall extend to prejudice diminish alter or take away any of the rights powers or authorities vested or to be vested in the county council in relation to sewers but all such rights powers and authorities shall be as valid and effectual as if this Act had not been passed :

- (3) As regards any works in respect of which the Company are under the provisions of subsection (2) of this section required to submit plans and sections to the county council the county council may require the Company in

constructing such works to make any reasonable deviation within the limits of deviation of such works from the line or levels shown upon such plan or section for the purpose of avoiding injury or risk of injury to the sewer and the Company shall in constructing such works deviate accordingly :

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- (4) The plans to be submitted to the county council for the purposes of this section shall be detailed plans drawings sections and specifications describing the exact position and manner in which and the level at which the said railway is proposed to be constructed and shall accurately describe the position of the sewer (for which purpose the county council shall allow the Company access to plans in their possession and to any sewers of the county council in order to enable the Company to obtain reliable information) and shall comprise detailed drawings of every alteration which the Company may propose to make in the sewer :
- (5) The county council may require such modifications to be made in the said plans drawings sections and particulars as may be reasonably necessary to secure their drainage system against interference or risk of damage and to provide and secure a proper and convenient means of access to the sewer :
- (6) The Company shall be liable to make good all injury or damage caused by or resulting from any of their works or operations to the sewer and the county council shall from time to time have power to recover the amount thereof from the Company in any court of competent jurisdiction :
- (7) The approval by the county council of any plans or the superintendence by the county council of any work under the provisions of this section shall not exonerate the Company from any liability or affect any claim for damages under this section or otherwise :

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(8) If the Company in the construction of the said railway alter damage or in any way interfere with the sewer the Company shall—

(a) from time to time pay to the county council any additional cost to which the county council may be put in the maintenance management or renewal of any new altered or substituted sewer which may be necessary in consequence of the construction of the works; and

(b) give to the county council so far as may be reasonably practicable full free and uninterrupted access at all times to any such new altered or substituted sewer and every reasonable facility for the inspection maintenance alteration and repair thereof:

(9) Nothing in this Act contained shall affect the provisions of any agreement between the Company and the county council with respect to the sewer and where the provisions of this section are inconsistent with those of any such agreement the provisions of the agreement shall apply:

(10) Any difference which shall arise between the Company and the county council under the provisions of this section shall be referred to and determined by an engineer or other fit person to be appointed failing agreement on the application of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination.

For pro-
tection of
Bucking-
ham County
Council.

15. Notwithstanding anything shown on the deposited plans and unless otherwise agreed in writing between the Company and the council of the administrative county of Buckingham the bridge to carry Railway No. 1 by this Act authorised over the road leading from Uxbridge to Rickmansworth on the west side of Denham station numbered on the deposited plans 3 in the parish of Denham and known as the North Orbital

Road shall be constructed by the Company with a span of thirty-five feet and with a clearance of at least sixteen feet over every part of the existing carriageway. A.D. 1937.
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16. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the urban district council of Uxbridge (in this section referred to as "the council") shall apply and have effect unless otherwise agreed in writing between the Company and the council (that is to say):—

For pro-
tection of
Uxbridge
Urban
District
Council.

(1) The Company shall carry Railway No. 1 authorised by this Act (in this section referred to as "the railway") over the road known as Breakspear Road numbered on the deposited plans 33 in the urban district of Uxbridge by means of a bridge with a span of 35 feet square to the road and a headway of 15 feet 9 inches for a centre width of 28 feet 3 inches and a minimum height of 13 feet 3 inches over the footpaths:

(2) Before commencing the construction of so much of the railway as will cross the said road the Company shall give notice in writing to the council of the Company's intention to construct such part of the railway:

(3) (a) Within one month of the receipt of any such notice as is referred to in subsection (2) of this section the council may give a counter-notice in writing to the Company of the council's desire that the bridge for carrying the railway over the road shall be made with the span and headway mentioned in such counter-notice and upon the council giving such a counter-notice the Company shall construct the bridge with the span and headway mentioned in the counter-notice;

(b) The council shall at their own expense lower the road to such an extent as may be necessitated by compliance with any counter-notice in order to provide the headway which the Company are required to give;

(c) The Company may subject to the consent of the Minister of Transport construct the

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bridge mentioned in any counter-notice with a centre pier in the roadway if it is reasonably necessary so to do in order to avoid undue expense in constructing the bridge :

- (4) Upon completion of the works referred to in any counter-notice given by the council under subsection (3) of this section the council shall pay to the Company the additional cost which shall reasonably have been incurred by the Company in constructing the bridge in the manner referred to in such counter-notice instead of as a bridge of the dimensions specified in subsection (1) of this section :
- (5) Any additional expense which the Company may reasonably incur in maintaining and renewing the bridge owing to its being constructed with greater span and/or headway than the span and headway specified in subsection (1) of this section shall be a commuted lump sum agreed between the council and the Company or determined by arbitration as in this section provided and the council shall pay to the Company the sum so agreed or determined and after payment of such sum to the Company the council shall not be subject to any further liability in respect of such additional expense :
- (6) The Company shall construct the railway through the southernmost arch of the existing bridge carrying the road numbered on the deposited plans 21 in the said urban district over the railway of the Great Western and Great Central Railways Joint Committee and shall not in constructing the railway interfere with the bridge or the road thereon :
- (7) The Company shall not alter disturb or in any way interfere with any sewer drain stream watercourse water main property or work of the council or under their control or repairable by them or the access to any such sewer drain water main property or work or lay or construct any works over or across any sewer or water main of the council or under their control or repairable by them without the consent of the council which may be given subject to such

reasonable terms and conditions as the council may require but shall not be unreasonably withheld and any alteration deviation replacement or reconstruction of any such sewer drain water main property or work that may be necessary shall be made by the council or the Company (as the council may think fit) and any costs and expenses reasonably incurred by the council in so doing shall be repaid by the Company to the council :

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- (8) The Company shall carry the railway over the accommodation road and footpath numbered on the deposited plans 36 and the footpath numbered 47A in the said urban district by bridges of similar spans to those of the bridges under the adjoining railway :
- (9) Nothing in this section contained shall prejudice alter or affect the rights of the Company or the council under any existing agreement between them and where the provisions of such agreement are inconsistent with this section the provisions of the said agreement shall apply :
- (10) Any difference which may arise under this section between the Company and the council (other than a difference as to the determination of the purchase price and compensation payable in respect of any land to be acquired by the Company) shall be referred to and determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination.

17. For the protection of the Central Electricity Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Company and the board apply and have effect (that is to say) :—

For protection of Central Electricity Board.

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall not take or use any works or apparatus of the board :

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- (2) Before commencing any work in connection with Railway No. 1 or Railway No. 2 by this Act authorised within one hundred feet of any tower (including the foundations thereof) existing at the passing of this Act forming part (in the case of Railway No. 1) of the one hundred and thirty-two thousand volt main transmission line erected by the board between Uxbridge and Willesden or (in the case of Railway No. 2) of the one hundred and thirty-two thousand volt main transmission line erected by the board between Newton Abbot and Exeter the Company shall give to the board not less than twenty-eight days' previous notice in writing accompanied by a plan and section of the work and if within fourteen days from the receipt of such notice the board notify the Company in writing that the execution of such work will injuriously affect or endanger the main transmission line in respect of which the notice has been given the Company shall not commence such work until the board shall have so constructed protective works or if reasonably necessary have so altered and changed the said main transmission line or any part thereof that such injurious affection or endangering shall be avoided and the Company shall pay to the board on demand the costs charges and expenses which the board may reasonably incur in connection with any such construction or any such alteration and change as aforesaid :
- (3) Nothing in this section contained shall prejudice alter or affect the rights of the Company or the board under any agreement between them in force at the date of the passing of this Act and relating to electric lines cables works and apparatus of the board and where the provisions of any such agreement are inconsistent with the provisions of this section the provisions of that agreement shall apply :
- (4) Any difference which shall arise between the board and the Company under this section shall be referred to and determined by a single arbitrator to be agreed upon between the

parties or (failing agreement) to be appointed by the President of the Institution of Civil Engineers on the application of either party after notice in writing to the other and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to the reference and determination. A.D. 1937.
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18. For the protection of the conservators of the river Thames (in this section referred to as “the conservators”) the following provisions shall unless otherwise agreed in writing between the Company and the conservators have effect (that is to say):— For protection of conservators of river Thames.

(1) In this section—

“the said river and stream” means the river Colne and the stream numbered on the deposited plans 7 in the urban district of Uxbridge;

“the said works” means Railway No. 1 and all other works whether temporary or permanent by this Act authorised so far as they affect the said river and stream or either of them or any part thereof respectively:

- (2) The said works shall be executed in accordance with plans elevations and sections to be submitted to and to be subject to the reasonable approval of the conservators and shall be executed and maintained under the superintendence (if given) and to the reasonable satisfaction of the engineer of the conservators:
- (3) The Company shall give to the conservators at least twenty-one days’ notice in writing of the time and place of the commencement of any of the said works:
- (4) The said works when commenced shall be proceeded with and completed as quickly as reasonably possible:
- (5) The Company shall on the completion of such of the said works as are of a permanent nature and upon reasonable notice from the conservators so to do remove the whole and every part of such of the said works as are of a temporary nature and materials therefor which may have been placed in the said river and

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stream by or at the instance of the Company and in particular all piles and other works (not forming part of such of the said works as are of a permanent nature) in the beds of the said river and stream shall be drawn and not cut off and on the Company failing so to do the conservators may remove the same charging the Company with the expense of so doing and the Company shall forthwith repay to the conservators all expenses so incurred :

- (6) The Company shall not impede the flow of water in the said river and stream during the period of construction of the said works more than in the opinion of the conservators shall be absolutely necessary :
- (7) The Company shall not without the previous consent of the conservators in writing under the hand of their secretary embank or encroach upon or interfere with any part of the said river and stream or the beds or banks thereof otherwise than according to plans elevations and sections reasonably approved by the conservators :
- (8) The Company shall not (except so far as shall be necessary in the construction of the said works) take any gravel soil or other material from the beds or banks of the said river and stream without the previous consent of the conservators in writing under the hand of their secretary :
- (9) The Company shall at all times keep the conservators indemnified against all damages losses expenses and injuries which they may sustain or incur by reason or in consequence of the execution by the Company of the said works :
- (10) Any difference which may arise between the Company and the conservators under this section shall be referred to and determined by an arbitrator to be agreed upon or failing agreement appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers under and subject to the provisions of the Arbitration Acts 1889 to 1934.

19. The following provisions for the protection of the Grand Union Canal Company (in this section called "the canal company") shall notwithstanding anything in this Act and unless otherwise agreed in writing between the Company and the canal company have effect :—

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For pro-
tection of
Grand
Union Canal
Company.

(1) In this section—

"the canal" means the canal belonging to the canal company;

"the feeder" means the Ruislip feeder belonging to the canal company;

"the canal works" means so much of Railway No. 1 authorised by this Act and the works connected therewith or incidental thereto as will be constructed over or within twenty yards measured horizontally from any part of the canal or the towpath thereof;

"the feeder works" means so much of Railway No. 1 authorised by this Act and the works connected therewith or incidental thereto as will be constructed over or within five yards measured horizontally from any part of the feeder :

(2) The Company shall not under the powers conferred upon them by the section of this Act of which the marginal note is "Power to Company to make new railways and works" take any land which is the property of the canal company but the Company may purchase and take and the canal company shall if so required by the Company sell and grant such easements as may be reasonably required by the Company for constructing maintaining renewing and using or altering or removing the works in or over such land and the provisions of the Lands Clauses Acts with respect to lands shall (subject to the provisions of this Act) extend and apply to such easements as if the same were lands within the meaning of those Acts except that the purchase of any such easement shall not be deemed to be the purchase of a part of a house or other building or manufactory within the meaning of section 92 of the Lands Clauses Consolidation Act 1845 :

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(3) Except as provided by paragraph (b) of subsection (5) of this section the Company shall not enter upon use or interfere with either temporarily or permanently the canal or the towpath thereof or the feeder :

(4) (a) The Company shall not (except in emergency) commence to construct any of the canal works or the feeder works or to alter any of those works unless and until plans sections and particulars of the proposed works shall have been approved by the canal company or settled by arbitration nor until the date of the commencement of the said works stated in a notice given pursuant to paragraph (b) of this subsection :

Provided that if the canal company do not within twenty-one days after the submission to them of any plans sections or particulars signify their disapproval thereof and the grounds of such disapproval they shall be deemed to have approved thereof;

(b) The Company shall give to the canal company not less than seven days' notice in writing of the date on which they intend to commence any works the plans sections and particulars whereof have been approved by the canal company or settled by arbitration in accordance with the provisions of paragraph (a) of this subsection ;

(c) The canal works and the feeder works shall be constructed and any alteration thereof shall be carried out in accordance with the plans sections and particulars relating thereto as approved or settled as aforesaid and to the reasonable satisfaction of the canal company's engineer and under his supervision if he shall elect to attend during the execution of the work ;

(d) The canal company's engineer shall also be entitled at all reasonable times to inspect the canal works and the feeder works both during the construction and after the completion thereof ;

(e) The Company shall pay to the canal company the reasonable costs of such supervision

as aforesaid and of such inspection as aforesaid A.D. 1937.
as may be reasonably necessary : —

(5) The following provisions shall have effect with respect to the canal works :—

(a) Railway No. 1 shall be carried across the canal and the towpath thereof by a bridge of a single span of 60 feet measured from the western side of the towpath at right angles to the face of the abutments and with a pier in the waterway on the eastern side of the canal in the same alignment as the piers of the bridge carrying the Joint Committee's existing railway over the canal adjacent thereto and no part of the soffit or underside of the arch or girders of such bridge shall be less than ten feet three inches above the weir level of the canal at the point of crossing ;

(b) The Company may in connection with and for the purpose of the construction maintenance renewal alteration or removal of any of the canal works temporarily occupy and place works and plant on the towpath of the canal Provided that—

(i) the Company in so doing shall not obstruct the navigation of the canal and shall maintain a clear width of towpath of not less than four feet six inches and a clear headway over the canal of not less than eight feet nine inches above weir level and over the towpath of not less than seven feet nine inches ; and

(ii) all such temporary works and plant shall be removed from the towpath of the canal with all due dispatch as soon as the purpose for which they have been placed has been accomplished :

(6) Railway No. 1 shall be carried across the feeder by a bridge of a single span of not less than nine feet six inches measured at right angles to the face of the abutments of the bridge and with a headway of six feet six inches measured from the water level of normal flow to the soffit of the arch Provided that the abutments of such

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span shall be placed in such positions and to such lines as shall be determined by the engineer of the canal company :

- (7) The construction maintenance renewal and alteration of the canal works and the feeder works shall be carried out so as not to cause any leakage or loss of water from the canal or the feeder or any injury to the canal or towpath thereof or the feeder and (save as provided by paragraph (b) of subsection (5) of this section) so as not to interfere with the passage of traffic along the canal or towpath thereof or with the free flow of water in the feeder and the said works shall be maintained in good and substantial repair by the Company :
- (8) If at any time the said engineer shall be of opinion that the construction maintenance renewal or alteration of any of the canal works or the feeder works may be attended with danger to the canal or the feeder or involve any risk of loss of water therefrom the Company shall forthwith execute such further works or take such measures and precautions as the said engineer may reasonably require for the purpose of preventing injury to the canal or towpath thereof or the feeder or loss of water from the canal or the feeder :
- (9) The Company shall bear and pay to the canal company the reasonable costs charges and expenses of the employment during the construction maintenance renewal or alteration of the canal works and the feeder works of a reasonable number of watchmen to be appointed by the canal company for watching the canal and towpath thereof and the feeder and other property of the canal company with reference to the execution of the said works and for preventing so far as may be any damage obstruction or danger to the canal or towpath or the feeder or other property of the canal company from any of the operations of the Company under this Act or from any act or default of their contractors or of any person in the employment of the Company :

- (10) If in consequence of the construction use main- A.D. 1937.
tenance renewal or alteration of any of the canal
works or the feeder works or the failure or want
of repair thereof any injury to the canal or tow-
path thereof or the feeder or other property
of the canal company or leakage or loss of water
from the canal or the feeder or any interruption
to the conduct of traffic on the canal or towpath
thereof (except such interruption as cannot be
reasonably avoided by the Company in carrying
out the powers of this Act) or any interference
with the free flow of water in the feeder shall at
any time be occasioned or arise the Company
shall forthwith to the reasonable satisfaction
of the canal company's engineer execute all
such works and do all such things as may be
necessary to restore the canal or towpath or
the feeder or other property of the canal com-
pany to the same state and condition as before
the happening of such injury or leakage or loss
of water or remove the cause of such interrup-
tion or interference (as the case may require)
and take all such steps as may be necessary
to prevent the recurrence of such injury leak-
age loss interruption or interference under the
superintendence (if the same be given) and
to the reasonable satisfaction of the canal
company's engineer;

In case the Company at any time fail to
comply with the foregoing provisions of this
subsection and also in case of emergency the
canal company may after giving not less than
fourteen days' previous notice in writing to
the Company or forthwith if the circumstances
so require execute and do themselves all such
works and things as may be necessary as
aforesaid and the Company shall pay to the
canal company the costs and expenses reason-
ably incurred by the canal company in so
doing :

- (11) The Company shall indemnify and hold
harmless the canal company from all claims
or demands which may be made on or against
them in consequence of the construction use

A.D. 1937.
—

maintenance renewal or alteration of any of the canal works or the feeder works or the failure or want of repair thereof or in consequence of any act or omission of the company their contractors agents workmen or servants :

Provided that the canal company shall give to the Company immediate notice of any such claim or demand and that no settlement or compromise thereof shall be made except with the consent of the Company who shall (if they so elect) have the sole conduct of any settlement or compromise or of any proceedings necessary to resist the same :

- (12) The fact that any work or thing has been executed or done in accordance with a plan approved or not objected to by the canal company or with any requirement of the canal company or their engineer or under the supervision or to the satisfaction of the canal company's engineer or in accordance with any directions or award of an arbitrator under this Act shall not relieve the Company from any liability for damage caused to the canal company or affect any claim by the canal company for injury caused to the canal or towpath thereof or the feeder or other land of the canal company or any other claim competent to the canal company under this Act :
- (13) Any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) which shall arise between the Company and the canal company or their engineer under any of the provisions of this section shall be referred to and determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination.

For pro-
tection of
Metro-
politan
Electric

20. For the protection of Metropolitan Electric Supply Company Limited and the Uxbridge and District Electric Supply Company Limited (each of whom are in this section called "the electric company") the

following provisions shall have effect unless otherwise agreed upon in writing between the Company and the electric company (that is to say):—

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—
Supply
Company
Limited and
Uxbridge
and District
Electric
Supply
Company
Limited.

- (1) The Company shall not without the previous consent of the electric company which consent shall not be unreasonably withheld in constructing the railways and works by this Act authorised alter the position of or otherwise interfere with any of the electric lines works or apparatus (in this section referred to as "apparatus") of the electric company :
- (2) The Company shall not interrupt or interfere with the supply of energy through or by means of the said apparatus and shall if required by the electric company execute such works for protecting the said apparatus during the construction of the railways and works and for thereafter supporting the said apparatus and all alterations of the said apparatus as the electric company may reasonably require :
- (3) If the electric company so require they may by their own engineers or workmen do and execute the works for protecting the said apparatus of the electric company which may be required under this section and the Company shall on the completion thereof pay to the electric company the reasonable expense incurred by them in the execution of such protective works :
- (4) The Company shall make compensation to the electric company for any loss or damage occasioned to the electric company by reason or in consequence of the construction maintenance or failure of any railways or works of the Company and shall repay to the electric company the reasonable costs and expenses to which that company may be put by reason or in consequence of the railways works or operations of the Company :
- (5) Nothing in this section contained shall prejudice alter or affect the rights of the Company or the electric company under any agreement between them relating to any of the apparatus of the electric company and where the provisions of such agreement are inconsistent with the

A.D. 1937.
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provisions of this section the provisions of the said agreement shall apply :

- (6) If any difference shall arise between the Company and the electric company under this section such difference shall unless otherwise agreed be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

For pro-
tection of
Dawlish
Urban
District
Council.

21. The following provisions for the protection and benefit of the urban district council of Dawlish (in this section referred to as "the council") shall notwithstanding anything in this Act contained or shown on the deposited plans and sections apply and have effect with reference to the exercise of the powers of this Act unless otherwise agreed in writing between the Company and the council (that is to say) :—

- (1) Railway No. 2 by this Act authorised between points distant $16\frac{1}{4}$ chains and 23 chains from its commencement shall be carried by means of a viaduct and such viaduct shall be constructed (except the inner sides of the arches thereof) of red sandstone or other natural or synthetic stone or material of similar colour and shall be of such a character and design as to preserve so far as is possible the amenities of the neighbourhood and shall be constructed in accordance with plans sections designs specifications and particulars to be previously submitted to and reasonably approved by the council. The inner sides of the said arches shall be constructed of red bricks or other material in harmony with the colour of the other portions of such viaduct :
- (2) (a) The piers above ground level for the viaduct referred to in subsection (1) of this section shall not be constructed nearer than fifteen feet on either side of the centre line of the footpath numbered on the deposited plans 13 and 17 in the urban district of Dawlish and the headway provided for a distance of fifteen feet on either

side of the said centre line shall not be less at any point than twenty-five feet; A.D. 1937.
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(b) The piers above ground level for the said viaduct shall not be constructed nearer than fifteen feet on either side of the centre line of the stream known as Dawlish Water numbered on the deposited plans 19 in the urban district of Dawlish :

- (3) The diversion of road to be constructed by the Company in pursuance of the section of this Act of which the marginal note is “ Power to “ divert roads and footpaths as shown on “ deposited plans ” in substitution for a portion of the road numbered on the deposited plans 39 in the urban district of Dawlish shall have a width of not less than twenty feet and the diversion shall not be constructed in a position differing at any point by more than ten feet from that marked “ Centre line of diversion of road fifteen feet in width ” on the deposited plans The inclination of the said diversion shall not be greater than 1 in 9·74 :
- (4) The diversion of road to be constructed by the Company in pursuance of the section of this Act of which the marginal note is “ Power to “ divert roads and footpaths as shown on “ deposited plans ” in substitution for a portion of the road numbered on the deposited plans 77 in the urban district of Dawlish shall have a width of not less than twenty-five feet and the diversion shall not be constructed in a position differing by more than twenty-five feet from that marked “ Centre line of diversion of road twenty-five feet in width ” on the deposited plans and the Company shall carry the said diversion over the Railway No. 2 by means of a bridge having a clear width (measured at right angles to the centre line of the road) of not less than twenty-five feet The inclination of the said diversion shall not be greater than 1 in 25 :
- (5) Subsections (1) and (2) of the section of this Act of which the marginal note is “ Stopping “ up roads and footpaths in case of diversion

A.D. 1937.
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“ or making of new road or footpath ” shall not apply to the diversions of roads referred to in subsections (3) and (4) of this section and subsection (3) of the said first mentioned section shall be read and have effect as if the decision by arbitration of any question between the council and the Company under subsection (6) of this section were referred to therein instead of “ the said certificate ” :

- (6) The stopping up of the roads referred to in subsections (3) and (4) of this section shall not take place until the diversions of roads therein mentioned have been constructed and are completed to the reasonable satisfaction of the council and are open for public use or in case of difference between the Company and the council until it has been determined by arbitration that the construction of the said diversions has been satisfactorily completed and the same are open for public use :
- (7) In the construction of the said Railway No. 2 so far as it will interfere with the roads numbered on the deposited plans 6 and 29 in the urban district of Dawlish the Company shall carry the same over the said roads by means of bridges having clear widths of twenty-five feet and forty feet respectively and with a headway of sixteen feet throughout in each case and the Company shall carry the road numbered on the deposited plans 120 in that urban district over the said railway by means of a bridge having a clear width of thirty feet between the parapets :
- (8) The widths of the roadways and bridges in the urban district of Dawlish referred to in subsections (3) (4) and (7) of this section and in the section of this Act of which the marginal note is “ Height and span of bridges ” shall be measured at right angles to the centre line of the road and all bridges to be constructed in the urban district of Dawlish in pursuance of the provisions of subsection (7) of this section and the section of this Act of which the marginal note is “ Height and span of bridges ”

shall have a clear headway throughout equal to that prescribed in the said subsection and sections : A.D. 1937.
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- (9) Before commencing the construction of the diversions of roads referred to in subsections (3) and (4) of this section or the bridges referred to in subsection (7) of this section or the bridges in the urban district of Dawlish referred to in the section of this Act of which the marginal note is "Height and span of bridges" or the construction of so much of the works by this Act authorised as will interfere with any road or footpath vested in the council the Company shall submit to the council for their reasonable approval plans and sections thereof showing in the case of each of the said bridges the method of construction and in the case of any such road or footpath any alteration thereof which the Company may propose :
- (10) If the council shall not within twenty-eight days after the submission to them of any plans and sections under the provisions of this section signify to the Company in writing their approval or disapproval thereof they shall be deemed to have approved the same :
- (11) The Company shall not construct any works in respect of which they are required by this section to submit plans and sections to the council for their reasonable approval otherwise than in accordance with such plans and sections as may be so approved by the council or if such approval be refused as may be settled by arbitration and all such works shall be constructed to the reasonable satisfaction of the council :
- (12) (a) If the construction maintenance or use of the Railway No. 2 by this Act authorised or any works and conveniences connected therewith shall cause any diminution of the supply of water derived by the council or their lessees or tenants from their well in the enclosures numbered on the deposited plans 116 and 117 in the urban district of Dawlish (in this subsection referred to as "the well") the

A.D. 1937.
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Company shall make compensation to the council for any loss or expense resulting from such diminution;

(b) The council shall afford the officers servants and representatives of the Company at all reasonable times after the passing of this Act access to the well for the purpose of ascertaining particulars thereof and the levels of the water therein;

(c) When the Company have ascertained any such particulars and levels they may send a memorandum thereof by post in a registered letter addressed with a sufficient direction to the council and if the council shall not within one month after such letter has been so sent give notice in writing to the Company that they do not accept such particulars and levels as correct they shall be deemed to have agreed that they are correct:

(13) If the construction or if during the period of one year after the completion of the construction the maintenance and use of the Railway No. 2 by this Act authorised or any works or conveniences connected therewith injures or prejudicially affects the water main of the council in the road numbered on the deposited plans 40 in the urban district of Dawlish the Company shall make compensation to the council for any loss damage or expense which may be attributable to such construction maintenance and user including (if reasonably necessary) the strengthening and support of the said main:

(14) In the construction of the said railway between points distant 2 miles 3 furlongs and 3 miles 3 furlongs from its commencement the Company shall take such measures as may be reasonably required by the council to secure the uninterrupted flow of water to the council's waterworks in the parish of Kenton and (without prejudice to the generality of the foregoing requirement) shall construct at a point to be determined by the council on land belonging to or to be acquired or leased by

the council for the purpose in the enclosures numbered 872 or 873 on the 1/2500 Ordnance map of the said parish (edition of 1905) a covered tank of a capacity of not less than two hundred and sixteen cubic feet (which shall thereafter be the property of the council) together with—

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(a) such drains or conduits as may be necessary to convey to such tank any water derived from or falling upon the lands purchased by the Company and lying between points distant 2 miles 4·2 furlongs and 2 miles 5·3 furlongs from its commencement; and

(b) a pipe or conduit from the said tank to a point in the said enclosures to be determined by the council (which pipe or conduit shall thereafter be the property of the council);

All the said works shall be constructed to the reasonable satisfaction of the council and in accordance with plans sections and specifications to be reasonably approved by the council. All drains and conduits to be provided by the Company in pursuance of paragraph (a) of this subsection shall at all times be maintained and kept free from obstruction by the Company to the reasonable satisfaction of the council subject to the Company being afforded all necessary facilities therefor:

- (15) In the construction of the Railway No. 2 by this Act authorised the Company shall encase in concrete and properly protect from damage due to weight and vibration to the reasonable satisfaction of the council all drains and conduits used by the council for the collection of water for the purposes of their water undertaking lying in or under any land acquired (or in respect of which easements may be acquired) for the construction of the said railway including any land temporarily occupied for the purposes of such construction between points distant 2 miles 3 furlongs and 3 miles 3 furlongs from the commencement of the said railway:

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- (16) The Company shall not alter disturb or in any way interfere with any sewer drain stream watercourse water main property or work of the council or under their control or repairable by them or the access to any such sewer drain or water main without the consent of the council which may be given subject to such reasonable terms and conditions as the council may require but shall not be unreasonably withheld and any alteration deviation replacement or reconstruction of any such sewer drain water main or other property or work that may be reasonably necessary shall be made by the council or the Company (as the council may think fit) and any costs or expenses reasonably incurred by the council in so doing shall be repaid to the council by the Company Any works so made by the Company shall be carried out under the supervision (if given) of the council :
- (17) Any difference which may arise under subsection (1) of this section between the Company and the council shall be referred to and determined by an architect to be appointed (failing agreement) by the President of the Royal Institute of British Architects and any other difference (not being a difference to be determined in accordance with the provisions of the Lands Clauses Acts) which may arise under this section between the Company and the council shall be referred to and determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination :
- (18) Subsection (12) of section 13 (For protection of Dawlish Urban District Council) of the Great Western Railway (Additional Powers) Act 1936 shall be amended by the substitution of the words “ repaid to the council by the Company ” for the words “ repaid by the council to the Company.”

22. The following provisions for the protection and benefit of the rural district council of St. Thomas (in this section referred to as "the council") shall notwithstanding anything in this Act contained or shown on the deposited plans and sections apply and have effect with reference to the exercise of the powers of this Act unless otherwise agreed in writing between the Company and the council (that is to say):—

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For pro-
tection of
St. Thomas
Rural
District
Council.

(1) (a) If the construction maintenance or use of Railway No. 2 by this Act authorised or any works and conveniences connected therewith shall cause diminution or cesser of the supply of water obtained by the council from their reservoir near Starcross situate in the enclosure numbered 748 on the Ordnance map edition 1905 sheet C11/4 the Company shall make compensation to the council for any loss or expense resulting from such diminution or cesser;

(b) The council shall afford the officers servants and other representatives of the Company at all reasonable times after the passing of this Act access to the said reservoir for the purpose of ascertaining particulars thereof and the levels of the water therein;

(c) When the Company have ascertained any such particulars and levels they may send a memorandum thereof by post in a registered letter addressed with a sufficient direction to the council and if the council shall not within one month after such letter has been so sent give notice in writing to the Company that they do not accept such particulars and levels as correct they shall be deemed to have agreed that they are correct:

(2) Any dispute which shall arise between the council and the Company under this section shall be referred to and determined by a single arbitrator to be appointed failing agreement upon the application of either party after notice in writing to the other party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference.

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As to
footpath at
Kenton.

23. Notwithstanding anything contained in this Act the following provisions shall unless otherwise agreed in writing between the Saint Thomas Rural District Council and the Company apply and have effect (that is to say) :—

As soon as the Company shall have constructed and opened for public use the bridge over Railway No. 2 by this Act authorised to carry the existing footpath numbered on the deposited plans 28 in the parish of Kenton the council shall so long as the Company shall maintain the structure of the said bridge including the flooring of the footway in good and proper condition carry out any necessary scavenging and cleansing.

For pro-
tection of
Luscombe
Estate
Company.

24. For the protection of the Luscombe Estate Company and their successors in title (in this section referred to as "the owners") the following provisions shall unless otherwise agreed in writing between the Company and the owners apply and have effect notwithstanding anything in this Act contained (that is to say) :—

(1) Railway No. 2 by this Act authorised between points $16\frac{1}{4}$ chains and 23 chains from its commencement shall be carried by means of a viaduct and such viaduct together with any bridges constructed by the Company upon the property of the owners shall be constructed (except the inner sides of the arches thereof) of red sandstone or other natural or synthetic stone or material of similar colour and shall be of such a character and design as to preserve so far as is possible the amenities of the neighbourhood and of the estate of the owners and shall be constructed in accordance with plans sections designs specifications and particulars to be previously submitted to and reasonably approved by the owners :

(2) Before completing the construction of so much of Railway No. 2 as is referred to in subsection (1) of this section the Company shall lay down and construct to the reasonable satisfaction of the owners a roadway suitable for cattle under the said viaduct between the north-western and south-eastern portions of the

enclosure numbered on the deposited plans 11 in the urban district of Dawlish : A.D. 1937.
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(3) The Company shall not erect any fences on any lands which they may acquire or on any lands in respect of which they may acquire easements so far as such lands or easements are required for the construction and maintenance of the viaduct referred to in subsection (1) of this section and they shall afford such facilities as the owners may reasonably require for the planting care and maintenance by the owners of ornamental trees and shrubs on any such lands in the enclosures numbered on the deposited plans 10 11 and 14 in the urban district of Dawlish so long as such trees and shrubs shall not interfere with or prejudice the working and maintenance of the railway :

(4) If the construction maintenance or use of the Railway No. 2 by this Act authorised or any works or conveniences connected therewith injures or prejudicially affects—

(a) the leats numbered on the deposited plans 10 15 and 16 in the urban district of Dawlish ;

(b) the reservoir immediately to the east of the said leats ;

(c) any works or appliances connected with such leats or reservoir ;

(d) the supply of water collected or delivered by means of such leats or reservoir ; or

(e) the bridge carrying the approach to Luscombe Castle over Aller Road numbered on the deposited plans 10 in the urban district of Dawlish ;

the Company shall make compensation to the owners and their lessees or tenants for any loss damage or expense incurred by the owners or their lessees or tenants as a result of the total or partial failure of or damage to such leats reservoir or bridge which may be attributable to the construction maintenance or use of the said railway and shall also

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indemnify the owners against any claim for damage suffered by third parties consequent upon the escape of water from the reservoir or leats:

- (5) (a) At least three months before serving upon the owners notice to treat for the purchase of any lands shown upon the deposited plans or for the acquisition of any right or easement therein or thereover the Company shall submit to the owners for their reasonable approval plans sections and detailed particulars of any alteration of or interference with any occupation roads accommodation roads streams or watercourses situate upon or used or enjoyed in connection with such lands which the Company may consider necessary in connection with the construction of the works by this Act authorised;

(b) Unless such plans sections and particulars are disapproved by the owners within one month after submission the owners shall be deemed to have approved the same;

(c) The Company shall not alter or interfere with any such occupation roads accommodation roads streams and watercourses except in accordance with such plans sections and particulars and such reasonable terms and conditions as may be approved and required by the owners or determined by arbitration:

- (6) The Company shall to the reasonable satisfaction of the owners make all such provision as may be necessary for protecting the property of the owners against flooding and the accumulation of water occasioned by the Company's works:
- (7) The Company shall not construct any station depot signal box warehouse or sidings in the enclosures numbered on the deposited plans 10 and 11 in the urban district of Dawlish:
- (8) The Company shall not erect or display any advertisements upon any of the lands which they may acquire from the owners under the powers of this Act Provided that nothing in this subsection shall prevent the Company

from erecting or displaying advertisements at a station : A.D. 1937.

- (9) Any difference which may arise under subsection (1) of this section between the Company and the owners shall be referred to and determined by an architect to be appointed (failing agreement) by the President of the Royal Institute of British Architects and any other difference (not being a difference to be determined in accordance with the provisions of the Lands Clauses Acts) which may arise under this section between the Company and the owners shall be referred to and determined by a single arbitrator to be appointed (failing agreement) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination.

25. The provisions of subsections (1) to (9) (inclusive) (13) (14) and (15) of section 25 (For protection of Paignton Electric Light and Power Company Limited Dawlish Electric Light and Power Company Limited and Teignmouth Electric Lighting Company Limited) of the Great Western Railway (Additional Powers) Act 1936 shall notwithstanding anything to the contrary in any agreement licence or consent unless otherwise agreed in writing extend and apply to any works by this Act authorised as if those subsections were respectively re-enacted in this Act with reference thereto and as if the words "Dawlish Electric Light and Power Company Limited" were substituted for the words "electricity company."

For protection of Dawlish Electric Light & Power Company Limited.

26. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the Company in constructing Railway No. 3 by this Act authorised shall unless otherwise agreed in writing with the council of the administrative county of Glamorgan construct to a width of thirty feet the diversion of the road numbered on the deposited plans 10 and 13 in the parish of Pyle and on the completion of such diversion the said council shall forever maintain the diverted road and the works in connection therewith except the structure of the bridge carrying that road over the said Railway No. 3.

For protection of Glamorgan County Council.

A.D. 1937.

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Power to
Company to
construct
line of
pipes.

27.—(1) Subject to the provisions of this Act the Company may construct and lay down in the lines and according to the levels shown upon the deposited plan and section relating thereto the work hereinafter described and may enter upon take and use such of the lands delineated on the deposited plan thereof and described in the deposited book of reference relating thereto as may be required for that purpose (that is to say):—

A line or lines of pipes 3 furlongs and 4 chains in length wholly in the urban district of Uxbridge in the county of Middlesex commencing in the enclosure numbered 104 on the 25-inch Ordnance map (edition 1935 sheet X. 13) of the said urban district and terminating by a junction with the Yeading Brook at a point 3 chains west of the culvert carrying the road known as Hill Farm Road over that brook Together with such manholes inspection chambers and other subsidiary works in connection with the said work as may be necessary (which line or lines of pipes and other works are in this section collectively referred to as “the said works”).

(2) The Company may use the said works for the conveyance of surface water to the Yeading Brook but shall not use the same for the conveyance of sewage.

(3) The Company may purchase and acquire easements or rights of constructing using maintaining and renewing the said works through or under the said lands without being obliged to purchase the land over the same.

(4) As regards any lands in respect of which the Company have acquired easements or rights only under the provisions of this section the Company shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall unless otherwise agreed at all times after the completion of the said works and subject to such easements and rights have the same rights to use and cultivate the said lands as if this Act had not passed.

28. Subject to the provisions of this Act the Company may make and execute in the lines and according to the levels shown upon the deposited plans and sections relating thereto the new road and other works hereinafter mentioned and may stop up and discontinue the portions of roads and footpaths to be stopped up or diverted and exercise the other powers hereinafter mentioned and may enter upon take and use such of the lands delineated on the deposited plans thereof and described in the deposited books of reference relating thereto as may be required for those purposes or for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company (that is to say):—

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Power to
Company
to make
alterations
of roads
footpaths
&c.

In the county of Devon—

In the urban district of Dawlish—

They may stop up and discontinue so much of the footpath which passes under the Company's South Devon railway by means of a subway at a point 16 chains south-west of Dawlish station as lies between the boundaries of the Company's property and they may thereupon fill in such subway:

Provided that they shall not stop up and discontinue the said footpath until they have constructed to the reasonable satisfaction of the Dawlish Urban District Council and opened for public use a flight of steps leading from the promenade to the seashore at a point 11 chains south-west of the said station.

In the county of Cornwall—

In the urban district of Looe—

They may stop up and discontinue so much of the road which is numbered 27 in the said urban district on the plans deposited for Railway No. 2 authorised by the Great Western Railway (Additional Powers) Act 1936 as lies between its junction with the road numbered on the said plans 21 in the said urban district and a point in the first mentioned road 18 chains south of the said junction and in lieu

A.D. 1937.

thereof they may construct a new road from the said road numbered 21 to the said point;

They may stop up and extinguish all rights of way over the footpath numbered on the said plans 33 in the said urban district.

In the city and county borough of Cardiff—

They may stop up and extinguish all rights of way over the road near Ely station which extends in a south-easterly direction from a point in Ely Road opposite the Railway Hotel to the road connecting Ely Road with Cowbridge Road.

In the city and county borough of Worcester and in the parish of St. John in Bedwardine County in the rural district of Martley in the county of Worcester—

They may stop up and discontinue so much of the public footpath which crosses the Company's Worcester and Hereford railway on the level at Rushwick Halt as lies between the western end of the northern platform of that halt and its junction with the road leading from Hereford to Worcester and in lieu thereof they may construct a new footpath from the western end of the said platform to a point in the said road 1 chain west of the bridge carrying that road over the Company's railway.

Stopping up roads and footpaths in case of diversion or making of new road or footpath.

29.—(1) Where this Act authorises the diversion of a road or footpath or the making of a new road or footpath in substitution for an existing road or footpath or portion thereof the stopping up of the existing road or footpath shall not take place until such diverted or new road or footpath is completed to the satisfaction of the highway authority and is open for public use or in case of difference between the Company and the highway authority until two justices shall have certified that the diverted or new road or footpath has been completed to their satisfaction and is open for public use.

(2) Before applying to the justices for their certificate the Company shall give to the highway authority of the district in which the existing road or footpath is

situate seven days' notice in writing of their intention to apply for the same. A.D. 1937.

(3) As from the completion to the satisfaction of the highway authority of the diverted or new road or footpath or as from the date of the said certificate as the case may be all rights of way over or along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

30. The roads streets footpaths and highways to be made altered or diverted under the authority of this Act (except the stone steel or other structure of any bridge carrying the same over or under any railway of the Company together with the embankments and retaining walls supporting the bridge or its approaches which structure embankments and retaining walls except where otherwise expressly provided by this Act shall be repaired and maintained by and at the expense of the Company) shall unless otherwise agreed or otherwise specially provided by this Act when completed respectively be repaired and maintained by and at the expense of the parties on whom the expense of maintaining the adjoining portion or portions of the same roads streets footpaths and highways now devolves.

Provision as to repair of new roads and foot-paths.

31. The Company may enter into and carry into effect agreements with the parties having the charge management or control of the roads streets footpaths or highways or any of them portions whereof shall under the provisions of this Act be stopped up with reference to the construction or contribution towards the costs of any new road street footpath or highway to be substituted therefor and with reference to any

Power to make agreements as to construction of or contribution towards cost of new roads &c.

A.D. 1937. — other matters relating thereto and if so agreed the Company may delegate to such parties as aforesaid the power of constructing all or any of such new roads streets footpaths or highways in which they may be interested except the stone steel or other structure of any bridge over or under any railway.

Stopping
up road and
footpath
without
providing
substitute.

32. Where this Act authorises the stopping up of a road or footpath or portion thereof without providing a substitute such stopping up shall not take place except where the same is situate upon property of the Company without the consent of the owners lessees and occupiers of the houses and lands abutting on both sides thereof and from and after such stopping up all rights of way over or along the road or footpath or portion thereof authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway appropriate and use for the purposes of their undertaking the site of the road or footpath or portion thereof so stopped up :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement as modified by this Act.

Power to
deviate in
construction
of works.

33. In constructing the works other than the railways and works in connection therewith by this Act authorised the Company may deviate from the lines thereof to the extent of the limits of deviation marked on the deposited plans and from the levels thereof as shown on the deposited sections to any extent not exceeding five feet but not so as to increase the rate of inclination as shown on the deposited sections of any new or altered road or street where such rate is greater than the rate of inclination prescribed by the Railways Clauses Consolidation Act 1845 and where such rate is less than that so prescribed it may be increased to such prescribed rate except where otherwise expressly provided by this Act.

34. Seven days before entering upon breaking up or otherwise interfering with any street or road in connection with the construction of any works under the powers of this Act within the area of the metropolitan police district the Company shall give notice in writing to the Commissioner of Police of the Metropolis and make such arrangements with the said commissioner of police as may be reasonably necessary so as to cause as little interference with the traffic in such street or road during the construction of such works as may be reasonably practicable.

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As to works within metropolitan police district.

35.—(1) Notwithstanding the stopping up under the powers of this Act of the road near Ely station in the city and county borough of Cardiff (being the road extending in a south-easterly direction from a point in Ely Road opposite the Railway Hotel to the road connecting Ely Road with Cowbridge Road) the Postmaster-General may if he so desires (without derogation from any other right vested in him) remove therefrom any telegraphic line which is in or under the same and the Company shall pay to the Postmaster-General the expenses incurred by him of and incidental to the removal of such telegraphic line and of any telegraphic line connected therewith which in consequence will be rendered useless and the substitution of a telegraphic line in such other place as the Postmaster-General may require.

For protection of Postmaster General.

(2) “Telegraphic line” in this section has the same meaning as in the Telegraph Act 1878.

41 & 42 Vict. c. 76.

36. For the protection of South Wales Electric Power Company (in this section called “the electric company”) the following provisions shall have effect unless otherwise agreed upon in writing between the Company and the electric company (that is to say):—

For protection of South Wales Electric Power Company.

(1) The Company shall not without the previous consent of the electric company which consent shall not be unreasonably withheld in the execution of any works by this Act authorised alter the position of or otherwise interfere with any of the electric lines works or apparatus (in this section referred to as “apparatus”) of the electric company:

(2) The Company shall not interrupt or interfere with the supply of energy through or by means

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of the said apparatus and shall if required by the electric company execute such works for protecting the said apparatus during the execution of the works and for thereafter supporting the said apparatus and all alterations of the said apparatus as the electric company may reasonably require :

- (3) If the electric company so require they may by their own engineers or workmen do and execute the works for protecting the said apparatus of the electric company which may be required under this section and the Company shall on the completion thereof pay to the electric company the reasonable expense incurred by them in the execution of such protective works :
- (4) The Company shall make compensation to the electric company for any loss or damage occasioned to the electric company by reason or in consequence of the construction maintenance or failure of any works of the Company and shall repay to the electric company the reasonable costs and expenses to which that company may be put by reason or in consequence of the railway works or operations of the Company :
- (5) Nothing in this section or subsection (2) of the section of this Act of which the marginal note is " Abandonment of railways " contained shall prejudice alter or affect the rights of the Company or the electric company under any agreement between them relating to any of the apparatus of the electric company and where the provisions of such agreement are inconsistent with the provisions of this section or the said subsection the provisions of the said agreement shall apply :
- (6) If any difference shall arise between the Company and the electric company under this section such difference shall unless otherwise agreed be determined by an arbitrator to be appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such arbitration.

37. Subject to the provisions of this Act and in addition to the other lands which the Company are by this Act authorised to acquire the Company the two Companies and the Joint Committee respectively may enter upon take use and appropriate for the general purposes of their respective undertakings and works connected therewith and for providing increased accommodation and for providing accommodation for persons of the working class who may be displaced in executing the powers of this Act or any other Act relating to the Company the two Companies or the Joint Committee respectively all or any of the lands following delineated on the deposited plans thereof and described in the deposited books of reference relating thereto (that is to say):—

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Power to
acquire
additional
lands.

Lands to be acquired by the Company—

In the county of Devon—

Lands in the borough of Totnes lying on and adjoining the western side of the Company's Totnes Quay branch railway between points 6 chains and 21 chains north of the crossing by that railway on the level of the road leading from Totnes to Paignton:

In the county of Pembroke—

Lands in the borough of Haverfordwest and in the parish of Uzmaston in the rural district of Haverfordwest lying on the south-eastern side of the Company's South Wales railway between points 5 chains and 26 chains south-west of the bridge carrying Narberth Road over the said railway.

Lands to be acquired by the two Companies—

In the county of Hereford—

Lands in the city of Hereford lying on and adjoining the north-eastern side of the two Companies' joint Shrewsbury and Hereford railway and the north-western side of St. Barnabas' Mission Church and extending from the said railway to Barrs Court Road.

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Lands to be acquired by the Joint Committee—
In the county of Buckingham—

Lands in the parish of Denham in the rural district of Eton lying on and adjoining the northern side of the Joint Committee's Northolt and Wycombe railway and between points 1 chain and 20 chains east of Denham station.

As to private rights of way over lands taken compulsorily.

38. All private rights of way over any lands which are under the powers of this Act authorised to be acquired compulsorily shall as from the date of their acquisition be extinguished if the Company the two Companies or the Joint Committee as the case may be shall so determine and give notice in writing of such their determination to the owner of any right of way referred to therein Provided that the Company the two Companies or the Joint Committee as the case may be shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

For protection of Devon County Council.

39. Notwithstanding anything contained in this Act or shown on the deposited plans and sections the following provisions for the protection and benefit of the county council of the administrative county of Devon (in this section referred to as "the county council") shall apply and have effect unless otherwise agreed in writing between the Company and the county council (that is to say) :—

(1) The Company shall construct the bridges to carry the roads referred to in the following table over Railway No. 2 authorised by this Act of the widths between the parapets set out in the third column of that table opposite to the names of the respective roads (namely) :—

Name of road.	No. on deposited plan.	Width of road.
		Feet.
Mamhead - Starcross Road.	Parish of Kenton 20	35
Black Forest Road -	Parish of Kenton 26	25
Powderham Road -	Parish of Powderham 24	35

(2) The Company shall also construct the road over the bridge and approaches thereto carrying the said Powderham Road over the said railway with a vertical curve over the whole of the structure of the said bridge and approaches thereto in accordance with the section signed by Raymond Carpmael on behalf of the Company and by Andrew Warren on behalf of the county council : A.D. 1937.

(3) (a) The county council shall maintain the road upon the bridge carrying the Powderham Road over the said railway and the approaches to the said bridge after the expiration of a period of two years from completion of the said road bridge and approaches ;

(b) In the event of the county council serving a counter-notice under subsection (7) of this section requiring that the said bridge shall be constructed of a greater width between parapets and/or with longer approaches than would have been required if no counter-notice had been served the commuted lump sum which the county council would be required to pay to the Company under subsection (9) of this section shall not include the capitalised cost of maintaining the road over the additional width of bridge and/or length of approaches ;

(c) The county council shall not become liable for the construction or maintenance of any part of the structure of the said bridge and approaches or retaining walls banks parapets or fences thereto :

(4) The Company shall carry the said Railway No. 2 over the Exeter-Dawlish road numbered on the deposited plans 60 in the parish of Kenton by means of a bridge with a square span of at least forty feet and a headway of at least sixteen feet throughout :

(5) The Company in lowering the roadway of Chiverston Lane numbered on the deposited plans 50 in the parish of Kenton under the bridge to carry Railway No. 2 over that road shall provide and shall thereafter maintain

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to the reasonable satisfaction of the county council such drains culverts and other works as the county council may reasonably require for the purpose of draining the part of the said road as lowered :

(6) Before commencing the construction of so much of the said Railway No. 2 as will cross either the Exeter-Dawlish or the Powderham Road the Company shall give notice in writing to the county council of the Company's intention to construct such parts of the said railway and specifying the road which will be interfered with :

(7) (a) Within two months of the receipt of any such notice as is referred to in subsection (6) of this section the county council may give a counter-notice in writing to the Company of the county council's desire that in the case of the Exeter-Dawlish road the bridge for carrying the said railway over that road shall be made with the span and headway mentioned in such counter-notice and in the case of the Powderham Road the bridge for carrying that road over the railway shall be made of the width between the parapets and with approaches of the gradients mentioned in the counter-notice and upon the county council giving such a counter-notice the Company shall construct the bridge in respect of which the notice is given with the span and headway or of the width and with approaches of the gradients (as the case may be) mentioned in the counter-notice ;

(b) The county council shall at their own expense lower the Exeter-Dawlish road to such an extent as may be necessitated by compliance with the counter-notice in order to provide the headway which the Company are required to give ;

(c) The Company may subject to the consent of the Minister of Transport construct the bridge for carrying the said railway over the Exeter-Dawlish road with a centre pier in the roadway if it is reasonably necessary so to do

in order to avoid undue expense in constructing the bridge : A.D. 1937.

- (8) Upon completion of the works referred to in any counter-notice given by the county council under subsection (7) of this section the county council shall pay to the Company the additional cost which shall reasonably have been incurred by the Company (a) in the case of the Exeter-Dawlish road in constructing the bridge carrying the said railway over that road in the manner referred to in such counter-notice instead of as a bridge with a span of forty feet and a headway of sixteen feet throughout such span of forty feet and (b) in the case of the Powderham Road in constructing the bridge carrying the said road over the said railway in the manner referred to in such counter-notice instead of as a bridge with a width between the parapets of thirty-five feet and with approaches of gradients less than those required by subsection (2) of this section :
- (9) Any additional expense which the Company may reasonably incur in maintaining and renewing either of the bridges referred to in subsection (6) of this section owing to its being constructed of a greater span than forty feet or with a greater width than thirty-five feet between the parapets or with approaches of gradients less than those required by subsection (2) of this section (as the case may be) shall except as provided by subsection (3) of this section be a commuted lump sum agreed between the county council and the Company or determined by arbitration as in this section provided and the county council shall pay to the Company the sum so agreed or determined and after payment of such sum to the Company the county council shall not be subject to any further liability in respect of such additional expense :
- (10) The Company shall not acquire any greater amount of land adjacent to Oxton Lane or Chiverston Lane aforesaid shown within the limits of deviation on the deposited plans at

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the points where Railway No. 2 authorised by this Act will cross those roads respectively than shall be required for the construction and support of the said railway and the bridges carrying the said railway over the said roads respectively :

- (11) The Company shall not acquire or use for the construction of the said railway any part of the Exeter-Dawlish road nor any greater area of the land adjoining that road and required for the future improvement of the said road as shown coloured pink on the plan signed by Raymond Carpmael on behalf of the Company and Andrew Warren on behalf of the county council than the area shown hatched red on that plan. Provided that in the event of the county council serving a counter-notice requiring the Company to construct the bridge carrying the said railway over the said road with a square span of sixty feet or more the Company shall not acquire or use any part of the land coloured pink on the said plan :
- (12) The Company shall not alter disturb or in any way interfere with any drain watercourse property or work of the county council or under their control or repairable by them or the access to any such drain watercourse property or work or lay or construct any works over or across any drain watercourse property or work of the county council or under their control or repairable by them without the consent of the county council which may be given subject to such reasonable terms and conditions as the county council may require but shall not be unreasonably withheld and any alteration deviation replacement or reconstruction of any such drain watercourse property or work that may be necessary shall be made by the county council or the Company (as the county council may think fit) and any costs and expenses reasonably incurred by the county council in so doing shall be repaid by the Company to the county council. The Company shall from time to time pay to the

county council any additional expenses which the county council may incur in repairing maintaining or renewing any drain watercourse property or work in consequence of the works carried out by the Company under the powers of this Act : A.D. 1937.

- (13) The Company shall not interfere with any part of the Stonelands county bridge or the approaches thereto situate in the urban district of Dawlish unless the consent of the county council shall first have been obtained :
- (14) The bridge carrying the said railway over the river Kenn numbered on the deposited plans 4 in the parish of Powderham shall be constructed with a similar span to and of the same sectional area as the bridge carrying the said Exeter-Dawlish road over the said river :
- (15) The Company shall carry the footpath numbered 1 in the parish of Exminster and the footpath numbered 9 and 10 in the parish of Kenton respectively under the said railway by means of an under bridge with an arch of a minimum span of six feet and a headway of not less than eight feet :
- (16) The Company shall carry the footpath numbered 28 in the parish of Kenton over the said railway by means of a footbridge of a width of three feet between the parapets and shall thereafter maintain the structure of the said footbridge including the flooring of the footway in a good and proper condition :
- (17) The Company shall construct the new access road at Totnes so that the bridge over the mill leat numbered on the deposited plans 4 in the borough of Totnes shall be of a width of twenty feet between the parapets and shall round off the corners formed at the junction of the said access road with the Totnes northerly by-pass road in such manner and in accordance with such plan and sections as shall be reasonably approved by the county council :
- (18) Any difference (other than a difference to be determined in accordance with the provisions

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of the Lands Clauses Acts) which may arise under this section between the Company and the county council shall be referred to and determined by an arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other of them by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

Period for
completion
of railways.

40. If the railways are not completed before the first day of October one thousand nine hundred and forty-two then as from that date the powers by this Act granted to the Company for making and completing the same or otherwise in relation thereto shall cease except as to so much thereof as is then completed.

Imposing
penalty
unless
railways
opened.

41. If the Company fail within the period limited by this Act to complete the railways and open the same for public traffic they shall be liable in respect of each such railway to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the same is completed and opened for public traffic or until the sum received in respect of such penalty amounts to five per centum on the estimated cost of the works.

17 & 18 Vict.
c. 31.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Accountant-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as hereinafter provided.

But no penalties shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Minister of Transport that the Company were prevented from completing or opening

such railway or railways by unforeseen accident or circumstances beyond their control Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control. A.D. 1937.
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42. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit. Application of penalty.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been appointed or the Company is insolvent or the railway in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

43. The powers of this Act for the compulsory purchase of lands by the Company the two Companies or the Joint Committee respectively shall cease on the first day of October one thousand nine hundred and forty. Period for compulsory purchase of lands.

44. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company the two Companies or the Joint Committee as the case may be any easement right Power to owners to grant easements.

A.D. 1937. — or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for any of the purposes of this Act to be executed by them in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Compensation in case of recently altered buildings acquired by Company &c.

45. In settling any question of disputed purchase money or compensation payable under this Act by the Company the two Companies or the Joint Committee as the case may be the court or person settling the same shall not award any sum of money for or in respect of any improvement or alteration made or building erected or for or in respect of any interest in the lands created after the first day of November one thousand nine hundred and thirty-six if in the opinion of such court or person the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Owners may be required to sell parts only of certain properties.

46. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto therefore the following provisions shall have effect :—

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the first part of the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term “ the owner ” and the said properties are hereinafter referred to as the “ scheduled properties ” :

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- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :
- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the arbitrator to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the arbitrator") shall in addition to the other questions required to be determined by him determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the arbitrator shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the arbitrator :
- (5) If the arbitrator determines that the portion of the scheduled property specified in the

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notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the arbitrator may in his absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

- (6) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not he shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :
- (7) If the arbitrator determines that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the arbitrator shall having regard to the circumstances of the case and his final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any of the scheduled properties.

The provisions of this section shall apply and extend to the two Companies as if the two Companies and the second part of the said First Schedule had been referred to therein instead of the Company and the first part of that schedule. A.D. 1937.
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47.—(1) The Company on the one hand and the London Passenger Transport Board the London and North Eastern Railway Company and the Joint Committee or any of them on the other hand may from time to time enter into and carry into effect vary and rescind agreements with respect to the following purposes or any of them (that is to say) the construction ownership working maintenance renewal running over and user of Railway No. 1 by this Act authorised. Power to Company to enter into agreements for working &c. of Railway No. 1.

(2) The provisions of section 26 of the Railways Clauses Act 1863 shall apply to and for the purposes of any agreement entered into under the provisions of this section.

48. And whereas Railway No. 2 by this Act authorised is shown on the deposited plans and sections as intended to be constructed in tunnel through or under the properties referred to in the Second Schedule to this Act at a depth of thirty-five feet or upwards between the crown of the tunnel and the surface of the ground Therefore the Company may purchase and acquire easements or rights of constructing and using the railway through or under those properties without being obliged to purchase the land over such railway or any houses buildings manufactories or premises thereon respectively unless the tribunal to whom the question of disputed compensation shall be submitted shall determine that such rights or easements cannot be acquired or used by the Company without material detriment to such properties Provided that nothing in this section contained shall apply to any of the said properties where the surface of the ground is at a less height than thirty-five feet above the crown of the said tunnel as the same shall be constructed Provided also that nothing in this section contained nor any dealing with any of the said properties in pursuance thereof shall relieve the Company from liability to pay compensation under section 68 of the Lands Clauses Power to acquire easements for constructing tunnel on Railway No. 2.

A.D. 1937. — Consolidation Act 1845 in respect of any properties through or under which the Company may purchase or acquire an easement or right of constructing and using such tunnel.

Confirmation of discontinuance of public footpath and construction of new footpath.

49. The stopping up and discontinuance of so much of the public footpath in the parish of Wooburn in the rural district of Wycombe in the county of Buckingham which adjoins the south-eastern side of the Company's Wycombe railway between a point in that footpath 4 chains north-east of Bourne End station and the termination of that footpath at the junction of the Marlow-Wooburn road with Furlong Road near Cores End level crossing and the construction in lieu thereof of a new footpath between the said point and the said termination is hereby sanctioned and confirmed.

Confirmation of purchase of lands by Joint Committee.

50. The Joint Committee may hold use and appropriate for the general purposes of their undertaking the following lands which have already been acquired by them and the expenditure of money by the Joint Committee in or about the purchase or acquisition thereof or the works executed thereon is hereby sanctioned and confirmed (that is to say):—

Lands in the urban districts of Uxbridge and Ruislip-Northwood in the county of Middlesex lying on and adjoining the south-western side of the Joint Committee's Northolt and Wycombe railway and the south-eastern side of the London Passenger Transport Board's Harrow and Uxbridge railway and extending from the bridge carrying the Joint Committee's said railway over the London Passenger Transport Board's said railway for a distance of 40 chains in a south-easterly direction and 26 chains in a south-westerly direction.

Abandonment of railways.

51.—(1) The Company may abandon the maintenance and use of—

36 & 37 Vict. c. clxviii.
39 & 40 Vict. c. cxliii.

(a) So much of the Company's Camerton branch railway authorised by the Bristol and North Somerset Railway Act 1873 and the Great Western Railway Act 1876 as lies between the junction of that branch railway with the Company's Bristol and North Somerset railway at Hallatrow station and a point 7 chains west

of the bridge carrying the road from Radstock to Bath over the said branch railway at the western end of Camerton station; A.D. 1937.
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- (b) So much of the Company's Brecon and Merthyr railway authorised by the Act 6 Geo. IV. cap. lxii and the Rumney Railway Act 1861 as lies between its termination at Rhymney and a point 5 chains north-west of Abertysswg station; 6 Geo. 4.
c. lxii.
24 & 25 Vict.
c. ccxxvii.
- (c) So much of the Company's Pont Shon Norton branch railway authorised by the Taff Vale Railway Act 1896 as lies between its junction with the Company's Llancaiach branch railway and a point 37 chains south thereof; 59 & 60 Vict.
c. ccxxxiii.
- (d) So much of the Company's Llancaiach branch railway authorised by the Act 6 Will. IV. cap. lxxxii and the Taff Vale Railway Act 1873 as lies between its junction with the Company's Vale of Neath railway at Nelson and Llancaiach station and its junction with the Company's Pont Shon Norton branch railway; 6 Will. 4.
c. lxxxii.
36 & 37 Vict.
c. clviii.
- (e) So much of the Company's Mwyndy branch railway authorised by the Ely Valley (Mwyndy Branch) Act 1858 as lies between its termination and the crossing on the level by that railway of the road leading from Mwyndy to Mwyndy Fach; 21 & 22 Vict.
c. xxx.
- (f) So much of the Company's Llantrisant Common branch railway authorised by the Llantrissant and Taff Vale Junction Railway Act 1861 and the Llantrissant and Taff Vale Junction Railway Act 1866 as lies between its junction with the Company's Llantrisant branch railway and a point 1 chain west of the bridge carrying the first-mentioned railway over the road from Rhiwfelin to Llantrisant; 24 & 25 Vict.
c. li.
29 & 30 Vict.
c. ccxlviii.
- (g) Railway No. 3 authorised by the Llantrissant and Taff Vale Junction Railway Act 1866;
- (h) So much of the Company's Treferig Valley railway authorised by the Treferig Valley Railway Act 1879 as lies between its junction with the Company's Llantrisant Common 42 & 43 Vict.
c. clxvi.

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branch railway and a point 1 chain south-east of the bridge carrying the road leading from Rhiwfelin to Castellau over the first-mentioned railway;

36 & 37 Vict.
c. ccxxx.

(i) So much of the Company's Ely Valley branch railway authorised by the Ely and Clydach Valleys Railway Act 1873 as lies between a point 24 chains east of the footbridge over that railway opposite the Cambrian Colliery and the termination of that railway;

5 & 6
Will. 4.
c. xcvi.

(j) So much of the Company's Mountain branch railway authorised by the Act 5 & 6 Will. IV. cap. xcvi. as lies between its termination and a point 7 chains west of the crossing on the level by that railway of the road leading from Gors-lâs to Pen-y-groes.

(2) Subject to the provisions of this Act all the powers and obligations conferred or imposed upon the Company with respect to or in connection with the said railways by this Act authorised to be abandoned shall cease.

(3) Notwithstanding anything to the contrary contained in the Lands Clauses Consolidation Act 1845 ~~or any Act~~ relating to the Company the Company may retain use and appropriate for the general purposes of their undertaking the whole or such part as they may think fit of the lands and property forming the site of or acquired in connection with any of the railways or portions of railways authorised to be abandoned by this Act or may sell lease or otherwise dispose of such lands and property or the remainder thereof in such manner at such time or times to such person or persons and on such terms and conditions as they may think fit.

(4) The net proceeds arising on the sale of any land under this section shall be applied only to purposes to which capital is properly applicable.

As to
bridges.

52.—(1) Except as in this section otherwise provided nothing in this Act shall be deemed to relieve the Company of any liability which they may be under at the date of the passing of this Act in respect of the maintenance of any bridge (which expression where

used in this section includes the approaches thereto) A.D. 1937.
carrying a highway over the railways authorised to be
abandoned by this Act and of the highway thereon.

(2) The Company may at any time give to the authority body or person by whom the highway on either side of such bridge is maintained (hereinafter referred to as "the road authority") three calendar months' notice in writing requiring the road authority to take over the future maintenance of the bridge and the highway thereon upon terms to be agreed between the Company and the road authority or in default of agreement to be determined by arbitration and when and so soon as such terms have been so agreed or determined the said bridge and the site thereof shall by virtue of this Act be vested in the road authority who shall become and continue to be liable for the maintenance of the bridge and the highway thereon and all obligations upon the Company in respect thereof shall cease.

(3) The Company may at any time remove any such bridge and substitute a solid embankment therefor and alter the level of the highway (but not so as to increase the gradient thereof) and may carry out such other works as may be necessary or desirable in connection therewith and in the event of the Company carrying out such works and restoring the surface of the highway to the reasonable satisfaction of the road authority the embankment and works and the site thereof and the highway thereon shall on the expiration of three years after the completion of the before-mentioned works by virtue of this Act be vested in the road authority and thereupon all obligations upon the Company in respect thereof shall cease.

(4) Any difference arising between the Company and the road authority respecting any of the matters referred to in this section shall be referred to and determined by an arbitrator to be appointed failing agreement at the request of either party after notice in writing to the other by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Acts 1889 to 1934 shall apply to any such reference and determination.

A.D. 1937.

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For pro-
tection of
Plymouth
Estates
Limited.

53. The following provisions for the protection of the Plymouth Estates Limited (in this section called “the estates company”) shall notwithstanding anything in this or any other Act and unless otherwise agreed in writing between the Company and the estates company have effect:—

- (1) In this section “the railway” means the railway mentioned in paragraph (d) of subsection (1) of the section of this Act of which the marginal note is “Abandonment of railways” and includes the lands and property forming the site of or acquired in connection with that railway:
- (2) If at any time within one year after the passing of this Act the estates company by notice in writing addressed to the Company require the Company to sell the whole or any portion or portions of the railway upon which land of the estates company abuts the Company shall sell and the estates company shall purchase the whole or any such portion or portions of the railway freed and discharged from all debts and incumbrances affecting the same and from all rights privileges or easements now or heretofore enjoyed by the Company:
- (3) Any such sale and purchase shall be at such price as shall be agreed between the Company and the estates company or failing such agreement as shall be determined by an arbitrator appointed on the application of either party (after notice in writing to the other) by the President of the Surveyors Institution and the provisions of the Arbitration Acts 1889 to 1934 shall apply to such reference and determination.

Application
of certain
sections of
Acts of 1923
1924 and
1933.
13 & 14
Geo. 5.
c. xxx.

54. The provisions of section 46 (Powers as to building on or over lands &c. of Company) of the Great Western Railway (Additional Powers) Act 1923 as amended by section 39 of the Great Western Railway Act 1933 and of section 66 (As to private street expenses in certain cases) of the Great Western Railway (Additional Powers) Act 1924 and of section 38 (Power to hold or sell or otherwise dispose of lands) of the Great Western Railway Act 1933 shall extend and

apply to any lands acquired under the powers of this Act by the Company or the two Companies or the Joint Committee as the case may be as if the two Companies and the Joint Committee were referred to in those sections in addition to the Company.

A.D. 1937.
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23 & 24
Geo. 5. c. xx.
14 & 15
Geo. 5. c. 1.

55. The Company and the Joint Committee may respectively appropriate and apply to all or any of the purposes of this Act and for or towards the general purposes of their respective undertakings being in each case purposes to which capital is properly applicable any of the moneys which they have raised or are authorised to raise and which are not required for the purposes to which they are made specially applicable :

Application
of funds.

Provided that no part of the moneys which the Company have borrowed or are authorised to borrow from the London Electric Transport Finance Corporation Limited or the Railway Finance Corporation Limited under the powers conferred upon the Company by the *Great Western Railway (Ealing and Shepherd's Bush Railway Extension) Act 1936* and the *Great Western Railway (Additional Powers) Act 1936* respectively shall be appropriated or applied as aforesaid except in respect of such of the works authorised by this Act as may in pursuance of the provisions in that behalf contained in the agreements relating to the borrowing of such moneys scheduled to the above mentioned Acts respectively be or be deemed to be included in the works referred to in those agreements.

56. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any railway or to execute any other work or undertaking.

Deposits
for future
Bills not to
be paid out
of capital.

57. Nothing in this Act contained shall exempt the Company the London Company or the Joint Committee or their respective railways from the provisions of any general Act relating to railways or the better or more impartial audit of the accounts of railway companies passed before or after the commencement

Provisions
as to
general
Railway
Acts.

A.D. 1937. — of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the Company the London Company or the Joint Committee.

Costs of
Act.

58. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the A.D. 1937.
foregoing Act.

FIRST SCHEDULE.

Referred to in the section of this Act the marginal note
of which is "Owners may be required to sell parts
only of certain properties."

FIRST PART.

Describing properties whereof portions only may be required
to be taken by the Company.

Area.	No. on deposited plans.	Description of property.
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RAILWAY No. 1 (DENHAM AND RUISLIP).

Urban district of Ux- bridge.	30	Kitchen garden greenhouse and footpath.
	31	Kennels and kitchen garden.
	32	Rough land.
	41 43 44	Garden.
	45 46 50	
	51 52 53	
	54 55 56	
	57 58 59	
	60 61 62	
	63 64 65	
	66 67 68.	
	48 49	Garden and shed.

RAILWAY No. 2 (DAWLISH AND EXMINSTER).

Urban district of Dawlish.	1 38 83	Orchard.
	98.	
	8	Park.
	9	Occupation road.
	10	Plantation stream roads and bridge over road.
	12 37	Garden.
	18	Plantation and bank.
	22	Garden stable fowl-houses and run.

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1st Sch.
—cont.

Area.	No. on deposited plans.	Description of property.
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RAILWAY NO. 2 (DAWLISH AND EXMINSTER)—*continued*.

Urban district of Dawlish— <i>cont.</i>	24 35	Garden and sheds.
	25	Farm house dairy stables cowsheds root house pig-styes wash-house yard and garden.
	28	House (Vicarage) outbuildings garage sheds yard greenhouse garden and paths.
	30	Orchard shed and paths.
	31	Sheds and garden.
	32	House outbuildings forge and garden.
	33	Garden paths terraces and steps.
	34	Orchard and shed.
	66	Bungalow greenhouse garden and market garden.
	108	Orchard and cart track.
Parish of Kenton in the rural district of St. Thomas.	116	Gardens pump and sheds.
	11 58	Orchard.
	56	Field.
	57	Occupation road.
Parish of Powderham in the rural district of St. Thomas.	1 28	Orchard.
	12	Plantation roads shed garden tele- graph posts and wires.
	13	House garden outbuildings and pump.
	14	Garden outbuildings and sheds.
	17	Approach road to plantation.
	18	House garden and pump.
	20	Gardens.
	23	House garden outbuildings and fowlhouse.
Parish of Exminster in the rural district of St. Thomas.	15	Public house (Railway Inn) garage stable skittle alley outbuildings garden and ditches.
	17	Road forecourt to public house entrance to goods yard slope steps telephone posts and wires.

RAILWAY NO. 3 (PYLE).

Parish of Pyle in the rural district of Penybont.	7	House garden outbuilding and garage.
	8	House garden outbuilding shed and greenhouse.
	9	House gardens outbuilding and sheds.

			A.D. 1937.
Area.	No. on deposited plans.	Description of property.	1st Sch. —cont.
ROAD AT LOOE.			
Urban district of Looe.	3	Garden.	
LANDS AT HAVERFORDWEST.			
Borough of Haverfordwest.	1	Field and gardens.	
LANDS AT TOTNES.			
Borough of Totnes	3	Pig-styes.	

SECOND PART.		
Describing properties whereof portions only may be required to be taken by the two Companies.		
Area.	No. on deposited plans.	Description of property.
LANDS AT HEREFORD.		
City of Hereford	1	Rough land and garden.

SECOND SCHEDULE.

Referred to in the section of this Act the marginal note of which is “Power to acquire easements for constructing tunnel on Railway No. 2.”

Parish or other area.	No. on deposited plans.
Urban district of Dawlish	36 42 to 67 inclusive.